

24SMCV02696 24SMCV02696

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-24

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Case Number: 24SMCV02696 Hearing Date: August 24, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

23, 2026 -- continued to August 24, 2026

CASE NUMBER

24SMCV02696

MOTION

Motion

to be Relieved as Counsel

MOVING PARTY

Darren

M. Richie

OPPOSING PARTY

(none)

MOTION

Darren M. Richie of DRE, A.P.C., counsel
for Plaintiff Aleshia Hunter ("Counsel") moves to
be relieved as counsel, citing a breakdown of communication. The motion is unopposed.

LEGAL

STANDARD

Code of Civil Procedure section 284 provides "[t]he attorney in an action or special proceeding may be changed at any time before or after judgment or final determination as follows: 1. Upon the consent of both client and attorney, filed with the clerk, or entered in the minutes; 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other."

Procedural Requirements

California Rules of Court, rule 3.1362, requires:

(1) the motion must be made on
form MC-051; (subd. (a));

(2) it must be accompanied by
a declaration on form MC-052 stating why the motion is brought under Code of Civil Procedure section 284(2) instead of a consent brought under section 284(1); (subd. (c));

(3) a proposed order on form
MC-053 must be lodged with the court, specifying all hearing dates scheduled in the action or proceeding, including the date of trial, if known; (subd. (e));
and

(4) The documents must be
served on the client and on all parties that have appeared in the case. (subd. (d).)

If

the notice is served by mail or electronic service, it must be accompanied by a declaration indicating that the address served is the current address, or in the case of service by mail, that it was served on the last known address and a more current address could not be located after reasonable efforts within 30 days before filing the motion. (Ibid.) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.”

(Ibid.)

Substantive Requirements

Rules of Professional Conduct, rule 1.16(a) outlines the reasons a lawyer must withdraw from representation of a client:

(1) the client is bringing an action, conducting a defense, asserting a position in litigation, or taking an appeal, without probable cause and for the purpose of harassing or maliciously injuring any person;

(2) the representation will result in violation of the Rules of Professional Conduct or the State Bar Act;

(3) the lawyer's mental or physical condition renders it unreasonably difficult to carry out the representation effectively; or

(4) the client discharges the lawyer.

Rules of Professional Conduct, rule 1.16(b) outlines the reasons a lawyer may withdraw from representation of a client:

(1) the client insists upon presenting a claim or defense in litigation, or asserting a position or making a demand in a non-litigation matter, that is not warranted under existing law and cannot be supported by good faith argument for an extension, modification, or reversal of existing law;

(2) the

client either seeks to pursue a criminal or fraudulent course of conduct or has used the lawyer's services to advance a course of conduct that the lawyer reasonably believes was a crime or fraud;

(3) the

client insists that the lawyer pursue a course of conduct that is criminal or fraudulent;

(4) the

client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively;

(5) the

client breaches a material term of an agreement with, or obligation, to the lawyer relating to the representation, and the lawyer has given the client a reasonable warning after the breach that the lawyer will withdraw unless the client fulfills the agreement or performs the obligation;

(6) the

client knowingly and freely assents to termination of the representation;

(7) the

inability to work with co-counsel indicates that the best interests of the client likely will be served by withdrawal;

(8) the

lawyer's mental or physical condition renders it difficult for the lawyer to carry out the representation effectively;

(9) a

continuation of the representation is likely to result in a violation of these rules or the State Bar Act; or

(10)

the lawyer believes in good faith in a proceeding pending before a tribunal that the tribunal will find the existence of other good cause for withdrawal.

DISCUSSION

Counsel has filed forms MC-051, MC-052, and MC-053. The attorney declaration (MC-052) indicates that the motion was filed instead of filing a consent because:

The attorney-client relationship has deteriorated to the point that continued representation has become unreasonably difficult. There has been a breakdown in communication and trust that has rendered effective representation no longer feasible. The relationship has broken down so significantly that the attorney-client relationship is irrevocable. Additionally, Ms. Hunter has indicated an intent to retain substitute counsel, though as of the date of filing has not yet done so. In light of counsel's ethical obligations, further details cannot be disclosed without compromising the attorney-client privilege.

(MC-052 at ¶ 2.) As such, the Court finds that the motion complies with the Rules of Professional Conduct, rule 1.16(b)(4).)

The attorney declaration further indicates the client's address has been confirmed current within the past 30 days by certified mail, return receipt requested.

At the initial hearing, the Court found the proofs of service deficient, as they indicated the client and counsel for Defendants were served electronically, yet no electronic service address was listed for the client. As such, in lieu of denying the motion, the Court continued the hearing to afford Counsel an opportunity to correct the deficiency in the proof of service.

Subsequently, Counsel filed a new proof of service, demonstrating service of the moving papers (and of the notice of ruling from the first hearing) on the client and counsel for Defendant electronically and by mail on July 28, 2026.

As such, the Court finds the motion is now procedurally proper.

CONCLUSION

AND ORDER

Having found the Motion both procedurally and substantively proper,
the Court Grants Counsel's Motion to be Relieved as Counsel.

Counsel must serve the signed order (form MC-053), which shall include
information about all future hearings and proceedings noticed by any party, or
ordered by the Court, on the client and all other parties who have appeared in
the action, within 10 days of the date of this Order, and file a proof of
service of such. Counsel will remain the
attorney of record for Plaintiff Aleshia Hunter until Counsel files the
requisite proof of service. (See Cal.
Rules of Court, rule 3.1362(e).)

Further, to ensure that the Court's records are updated following the
filing of the proof(s) of service, Counsel shall contact the Court to advise
that the proof of service has been filed.

DATED: August 24, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court